

25STCV29809 25STCV29809

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Case Number: 25STCV29809 Hearing Date: September 9, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

APOLLO MANAGEMENT HOLDINGS, LP,

Plaintiff,

vs.

CORNERSTONE INTERNATIONAL INDUSTRIES, INC., et al.,

Defendants.

Case No.:

25STCV29809

Hearing Date:

September 9, 2026

Hearing Time:

8:30 a.m.

[TENTATIVE] ORDER RE:

PLAINTIFF

APOLLO MANAGEMENT, LP'S RENEWED MOTION TO SEAL CONFIDENTIAL PORTIONS OF COMPLAINT
AND EXHIBITS

Background

On October 10,
2025, Plaintiff Apollo Management Holdings, LP ("Apollo") filed this action against Defendants Cornerstone International Industries, Inc., Wendy Hickman, and Laird Robertson (collectively, "Defendants"), alleging four causes of action for (1) breach of contract, (2) fraudulent inducement, (3) promissory fraud, and (4) negligent misrepresentation.

Previously, Apollo moved for an order to seal any "Confidential Information" as it is defined in Plaintiff's Office Lease and incorporated in the Sublease Agreement, in addition to various financial information. On July 10, 2026, the Court granted Apollo's motion in part. In doing so, "[t]he Court order[ed] that confidential information and financial information contained in the complaint and exhibits are sealed." (Order 7/10/26, 6:11-13.) However, the Court denied "the request to seal Exhibit A entirely ... because Apollo did not carry its burden to demonstrate the need to seal the document in full." (Order 7/10/26, 6:14-15.) Exhibit A was the Office Lease.

Apollo now makes a renewed motion "to seal portions of the Sublease Agreement and sensitive financial information in the following documents:

1. Exhibit A to Plaintiff Apollo Management Holdings, LP's Complaint for Breach of Contract, Fraudulent Inducement, Promissory Fraud, and Negligent Misrepresentation (the 'Complaint');
2. Exhibit A to the Declaration of Sara C. Colón in Support of Plaintiff's Notice of Motion and Motion to Seal Confidential Information in Plaintiff's Complaint filed October 13, 2025 (the 'Motion to Seal');
3. Exhibit B to the Declaration of Sara C.

Colón in Support of the Motion to Seal;

4. Exhibit A to the Declaration of Sara C.

Colón in Support of Plaintiff's Renewed Notice of Motion and Motion to Seal
Confidential Portions of Complaint and Exhibits (the 'Renewed Motion to Seal');

5. Exhibit B to the Declaration of Sara C.

Colón in Support of the Renewed Motion to Seal;

6. Any opposing papers any Defendant may
file to the Renewed Motion to Seal; and

7. Any reply papers Plaintiff may file in
support of the Renewed Motion to Seal."

(Notice of Mot., 2:8-23.) No opposition
was filed.

Legal Standard

Generally, "[u]nless confidentiality is required by law, court records are presumed to be open." (Cal. Rules of Court, rule 2.550(c).) If the presumption of access applies, "[t]he court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest." (Cal. Rules of Court, rule 2.550(d).)

Discussion

Apollo's renewed motion to seal seeks to seal "(1) the underlying Office Lease between Plaintiff and Plaintiff's Landlord incorporated in and attached to the Sublease Agreement as Exhibit D thereto; (2) the reiteration of the Office Lease's terms contained in the Sublease Agreement; (3) the reiteration of the Office Lease's terms in Paragraphs 11 and 12 of the Complaint; (4) bank account and routing number information contained in the Sublease Agreement; and (5) rental amounts and payment figures contained in the Sublease Agreement and

Paragraph 1 of the Complaint.”[1]

(Mot., 9:6-12.) The Court previously found that Apollo did not adequately support its request to seal the Office Lease in its entirety. However, as Apollo notes in its motion, the Court’s previous Order found that Apollo adequately satisfied the first element for sealing the Office Lease. (See Order 7/10/26, 3:12-26 [“Apollo contends that ‘Paragraph 29.28 of the Office Lease provides a confidentiality provision’ (Mot., 6:17-18), and a ‘contractual obligation not to disclose can constitute an overriding interest within the meaning of rule 243.1(d).’ (Universal City Studios, Inc. v. Superior Court (2003) 110 Cal.App.4th 1273, 1283 (Universal).) ... The Court finds that Apollo presents an overriding interest.”].)

As for the second element requiring that the “overriding interest supports sealing the record,” Apollo asserts that its “overriding interest in preventing disclosure of confidential information ... supports sealing portions of this case. Plaintiff seeks only to seal the Office Lease, the reiteration of its terms contained in the Sublease Agreement at Paragraph 11.1(b) as well as Paragraphs 11 and 12 of Exhibit B...” (Mot., 7:20-23.) The Court finds that Apollo’s overriding interest in protecting their contractual right to confidentiality supports sealing the Office Lease and its terms, as incorporated into other agreements.

Third, Apollo asserts prejudice will ensue if the documents are not sealed because “[s]hould sealing be denied and the information be publicly disclosed, Plaintiff will suffer harm due to the disclosure of highly sensitive information. Revealing the Office Lease and its specific [sic] would create a conflict between the Court’s filing procedures and Plaintiff’s contractual covenant with its landlord, putting Plaintiff at risk of being found in breach of the Office Lease.” (Mot., 8:3-6.) As the court in Universal, supra, 110 Cal.App.4th at p. 1283 noted, even if a party demonstrates that there is “a binding contractual agreement not to disclose,” the party must still show that there is “a substantial probability that it will be prejudiced absent closure or sealing.” In that case, the defendant had a binding contractual agreement not to disclose, but the Court of Appeal found that the defendant did not “show[] a substantial probability any such interest in the present case will be prejudiced.” (Ibid.) Apollo’s explanation that, by not sealing the Office Lease and its terms, Apollo would breach the contract adequately supports the prejudice that would flow from not sealing this document.

Fourth, Apollo contends that the “proposed sealing is narrowly tailored. The Office Lease should be sealed in full because complete sealing is the only way to comply with the confidentiality provision. Only discrete figures and identifiers, the base rental amount, account and routing number information and specific incorporations of the Office Lease’s terms are redacted from the Sublease Agreement. And only and [sic] the reiteration of the Office Lease’s terms contained in Paragraphs 11 and 12 are redacted from the Complaint.” (Mot., 8:13-18.) Although completely sealing the Office Lease is not preferable, Apollo’s explanation that it would breach the parties’ agreement and be exposed to possible prejudice if the agreement is not sealed in full is sufficient to demonstrate that the request is narrowly tailored.

Lastly, Apollo contends “[n]o narrower alternative exists to protect the overriding interests.” (Mot., 8:22.) Apollo asserts that “[i]f the Office Lease or its terms are publicly filed, the information therein that Plaintiff’s landlord has designated as confidential information becomes public and out of the parties’ control, contrary to the confidentiality provision Plaintiff is expressly bound to. Full sealing of the Office Lease is the is the [sic] only effective option given the expansive confidentiality designation. Moreover, line-by-line redactions are the least restrictive means to keep private the financial information, rental amounts, and payment figures within the Sublease Agreement as well as the reiteration of the Office Lease terms contained in the Sublease Agreement at Paragraph 11.1(b) as well as Paragraphs 11 and 12 of the Complaint.” (Mot., 8:22-9:2.) Given the expansiveness of the confidentiality provision and Apollo’s demonstration that it would be harmed if this document is not sealed, the Court recognizes that sealing the document in full is the least restrictive means to protect Apollo’s interests.

Based on the foregoing, the Court finds that Apollo’s renewed motion demonstrates the need to seal the Office Lease and the direct information that flows from this document.

Conclusion

Based on the foregoing, Apollo’s renewed motion to seal is GRANTED. The Court orders that the Office Lease, attached as Exhibit A to the Complaint, is sealed. Additionally, the Office Lease as it appears in other documents is ordered sealed. Specifically, Exhibits A and B to the Declaration of Sara C. Colón for both the

Motion to Seal and the Renewed Motion to Seal. The Court notes that Apollo already filed redacted versions of the documents.

Pursuant to California Rules of Court, rule 2.551(e), the Court directs the clerk to file this Order, maintain the records ordered sealed in a secure manner, and clearly identify the records as sealed by this Order. The Court further orders that no persons other than the Court and Court staff, as necessary, are authorized to inspect the sealed records.

Apollo is
ordered to provide notice of this Order.

DATED: September 9, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court

[1] The Court notes that it previously granted the request to seal “confidential financial information, including rental amounts and payments, bank account and routing numbers, base rent and escrow deposits.” (Order 7/10/26, 6:4-5.) Accordingly, this discussion focuses on the Office Lease and its confidentiality provision.